

FOSTER v. IRBC2 PROPERTIES LLC et al
21CV45573

PLAINTIFF'S MOTION FOR RECONSIDERATION

This is a wrongful foreclosure case. The operative pleading herein is the Second Amended Complaint filed 01/05/23. Before the Court is plaintiff's motion for reconsideration of this Court's 01/03/23 order declaring that the lis pendens was to be expunged absent plaintiff's posting of a bond. No bond has been filed, which means that the lis pendens is ready to be expunged (if it has not been already).

Today's motion is procedurally defective. Pursuant to Calaveras County Superior Court Local Rule 3.3.7, "all matters noticed for the Law & Motion calendar shall include" specified language in the Notice of Motion, and "failure to include this language in the notice may be a basis for the Court to deny the motion." Although plaintiff is representing himself, he is still required to adhere to all the procedural requirements for law and motion; Moreover, as plaintiff has been involved in numerous law and motion matters on this case he has actual notice of the provision. Given that the Notice does not include the required language, and further given that defendant has objected to the motion on this very ground, the motion must be DENIED, without prejudice to refile, to the extent it otherwise is timely and appropriate pursuant to relevant statutes.

With that being said, however, since plaintiff may seek to refile the motion if expungement has not yet occurred, this Court would be remiss if it failed to point out that the motion as framed is without merit. CCP §1008(a) requires that any motion for reconsideration be supported by an affidavit from the moving party setting forth "what application was made before, when and to what judge, what order or decisions were made, and what new or different facts, circumstances, or law are claimed to be shown" that could not with reasonable diligence be presented earlier. (See also *Hennigan v. White* (2011) 199 Cal.App.4th 395, 406.) Nothing of the sort is shown here. Since a party filing a motion for reconsideration has an affirmative duty to do so in good faith, a frivolous motion for reconsideration might be the trigger for an award of sanctions to the opposing side. (See CCP §1008(d); *Bockrath v. Aldrich Chem. Co. Inc.* (1999) 21 Cal.4th 71, 82; *In re Marriage of Falcone* (2008) 164 Cal.App.4th 814, 830.)

Motion is DENIED without prejudice. The Clerk shall provide notice of this Ruling to the parties forthwith. No further formal Order is required.

TORMEY et al v. JENNINGS et al

22CV46038

PLAINTIFFS' MOTION FOR PRELIMINARY INJUNCTION

This is a quiet title action involving an easement for ingress and egress between adjoining parcels APN 012-004-005 and APN 012-004-019, which plaintiffs describe as an easement of necessity given the remoteness of the cabin thereon and the loss of an access bridge previously available to plaintiffs.

Before the Court this day is plaintiffs' application for a preliminary injunction to bar defendants from "blocking" plaintiffs' use of the disputed easement, and to affirmatively remove barriers to that access. Since the sliding scale analysis associated with preliminary injunctions includes consideration of affirmative defenses (see *Aiuto v. City & County of San Francisco* (2012) 201 Cal.App.4th 1347, 1355), and given that there are motions set next week attacking the answer filed on 01/05/23, the hearing on this application is better suited for consideration alongside the demurrer and motion to strike. For this reason, the application for a mixed prohibitory/mandatory injunction is continued to March 3, 2023, at 9:00 am in this department.

The Clerk shall provide notice of this Ruling to the parties forthwith. No further formal Order is required.